

GINSBURG, J., dissenting

sovereigns exception to the exclusionary rule was at odds with retention of the separate-sovereigns doctrine for double jeopardy purposes in *Abbate* and *Bartkus*. See 364 U.S., at 252.

Similarly, before incorporation of the Fifth Amendment privilege against self-incrimination, the Court held that the privilege did not prevent state authorities from compelling a defendant to provide testimony that could incriminate him or her in another jurisdiction. *Knapp v. Schweitzer*, 357 U.S. 371, 375–381 (1958). After application of the self-incrimination privilege to the States, the Court concluded that its prior position was incompatible with the “policies and purposes” of the privilege. *Murphy v. Waterfront Comm’n of N. Y. Harbor*, 378 U.S. 52, 55, 77 (1964). No longer, the Court held, could a witness “be whipsawed into incriminating himself under both state and federal law *even though the constitutional privilege against self-incrimination is applicable to each.*” *Id.*, at 55 (internal quotation marks omitted; emphasis added).

The Court regards incorporation as immaterial because application of the Double Jeopardy Clause to the States did not affect comprehension of the word “offence” to mean the violation of one sovereign’s law. *Ante*, at 707–709. But the Court attributed a separate-sovereigns meaning to “offence” at least in part because the Double Jeopardy Clause did not apply to the States. See *supra*, at 730. Incorporation of the Clause should prompt the Court to consider the protection against double jeopardy from the defendant’s perspective and to ask why each of two governments within the United States should be permitted to try a defendant once for the same offense when neither could try him or her twice.

B

The expansion of federal criminal law has exacerbated the problems created by the separate-sovereigns doctrine. Ill effects of the doctrine might once have been tempered by